

EuroPolis

A deliberative polity-making project

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I. The EU: History and how it works

The history of the European Union

The modern-day European Union is a direct result of a determination among European politicians to prevent future violent conflicts in Europe after World War II. The original aim was to tie countries together by forging closer industrial and economic cooperation. Since then, the EU's responsibilities have grown in response to new challenges and many more countries have joined.

- 1950:** French Foreign Minister Robert Schuman proposes integrating the coal and steel industries of Western Europe. This leads to the Treaty of Paris, creating the European Coal and Steel Community (ECSC), in 1951, with six members: Belgium, France, Italy, Luxembourg, the Netherlands and West Germany.
- 1957:** The same six countries sign the Treaties of Rome, creating the European Economic Community (EEC) and the European Atomic Energy Community (EURATOM). They begin removing trade barriers between the six countries and move towards creating a 'common market'.
- 1967:** The institutions of the EEC, ECSC and EURATOM are merged to form a single set of institutions: the European Commission, European Council and European Parliament (with members selected initially by national parliaments).
- 1973:** Denmark, Ireland and the United Kingdom join the European Community (EC).
- 1979:** The first direct elections to the European Parliament take place, with voters in each EU Member State electing the members.
- 1981:** Greece joins the European Community.
- 1986:** Portugal and Spain join the European Community.
The Single European Act is signed by EU governments, providing for the creation of a single market in which people, goods, capital and services can move freely around the EC.
- 1992:** The Treaty of Maastricht is signed, creating the European Union and introducing new forms of cooperation between Member State governments – for example, on defence and justice and home affairs issues.
EU leaders also agree to create an Economic and Monetary Union, with a single currency managed by a European Central Bank, within a decade.
The Single Market is formally completed, but much work remains to be done to make the promise of free movement of people, goods, capital and services a reality.
- 1995:** Austria, Finland and Sweden join the European Union (EU).
- 1999:** Europe's single currency – the euro – is officially launched and 11 EU Member States adopt it as their official currency, forming what is known as the euro zone.
- 2001:** Greece joins the euro zone.
The Treaty of Nice is signed, introducing reforms to the EU's institutions to prepare for the expansion of the Union with the admission of ten new Member States in 2004.
- 2002:** The euro becomes a reality on 1 January, when euro notes and coins replace national currencies in 12 of the 15 countries which are members of the EU: Austria, Belgium, Finland, France, Germany, Greece, Ireland, Italy, Luxembourg, the Netherlands, Portugal and Spain.
A 'Convention' to discuss the future of Europe is launched, with representatives of national governments and parliaments in the Member States and countries waiting to join the EU, the European Commission and the European Parliament.

- 2003:** The Convention submits its draft 'Treaty establishing a Constitution for the European Union' to EU leaders. Member State governments begin negotiations on the proposals.
- 2004:** Ten new countries join the EU, including eight from eastern and central Europe: the Czech Republic, Estonia, Hungary, Latvia, Lithuania, Poland, Slovakia and Slovenia, plus Cyprus and Malta.
EU leaders reach agreement on the Constitutional Treaty, which brings all the previous EU Treaties together in one document and introduces changes to the way the Union works. Member States are given two years to ratify the Treaty, which can only come into force if it is approved by all the EU's Member States.
- 2005:** Referenda are held on the Constitutional Treaty in four countries: Luxembourg and Spain vote in favour, but France and the Netherlands vote against.
- 2007:** Romania and Bulgaria join the EU, bringing the total number of Member States to 27.
Slovenia joins the euro zone.
EU leaders begin negotiations on a new EU Treaty, which is signed in Lisbon in December 2007.
EU celebrates its 50th anniversary.
- 2008:** Cyprus and Malta join the euro zone
The process of ratifying the Lisbon Treaty in all 27 EU Member States gets underway. 24 Member States ratify the treaty through their national parliaments, but Ireland votes 'No' in a referendum. Discussions begin on how to respond to the Irish No vote.
- 2009:** Slovakia to join the euro, bringing the total number of countries which have adopted the single currency to 16.

How the EU works?

Three main institutions are responsible for the day-to-day running of the European Union: the European Commission, the Council of the European Union and the European Parliament. Two other bodies - the European Court of Justice and the European Court of Auditors - play key roles in, respectively, ensuring that EU laws are upheld and that the EU budget is spent properly. The European Central Bank is responsible for managing the euro.

European Commission

This is the EU's executive or 'civil service'. It has four main roles:

- To propose new EU laws;
- To manage and implement EU policies and the budget;
- To enforce European law (with the European Court of Justice);
- To represent the EU on the international stage, negotiating international agreements on behalf of the EU as a whole in some policy areas.

Every five years, a new President and members of the Commission (currently one from each of the EU's 27 Member States) are nominated by EU governments and approved by the European Parliament. Each Commissioner is responsible for a specific area of EU policy, and has a small private office and a department staffed by permanent EU officials based in Brussels.

The Commission is politically answerable to the European Parliament, which has the power to dismiss the President and members by adopting a motion of censure.

Under the Lisbon Treaty, the number of European Commissioners would be reduced to two-thirds of the number of EU Member States, serving on a rotational basis.

Council of the European Union

This is the main decision-making body of the EU.

It is made up of one government minister from each EU Member State. Which minister attends depends on what subjects are under discussion (so, for example, the environment minister from each EU country sits on the 'Environment Council' and agriculture ministers meet at 'Agriculture Councils').

The Prime Ministers and/or Presidents of the 27 Member States, plus the European Commission President, meet at 'European Councils', generally held four times a year. These summit meetings set overall EU policy and resolve issues which cannot be settled at a lower level.

Under the Lisbon Treaty, the European Council would be chaired by a President appointed by EU leaders for a two-and-a-half-year term, renewable once.

The Council, in its various formations, has six main responsibilities:

- To pass EU laws (on most policy issues, it does this jointly with the European Parliament, but in some highly-sensitive areas, it decides on its own);
- To coordinate the broad economic policies of the EU's Member States;
- To conclude international agreements between the EU and other countries or international organisations;
- To approve the EU's budget, jointly with the European Parliament;
- To develop the EU's Common Foreign and Security Policy;
- To coordinate cooperation between national courts and police forces in criminal matters.

Most of these responsibilities relate to areas where EU Member States have agreed to share their sovereignty and delegate decision-making powers to the EU. However, in the last two, Member States have only delegated very limited powers to the Union, but have agreed to work together on a range of issues (a process known as 'intergovernmental cooperation').

These powers would be increased under the Lisbon Treaty. A new post of High Representative of the Union for Foreign Affairs and Security Policy would also be created, plus the EU's own diplomatic service, in a move designed to enhance its influence on the international stage.

In many policy areas, the Council takes decisions by 'Qualified Majority Vote', a system under which each country has a number of votes roughly proportionate to the size of its population. Under the Lisbon Treaty, the EU would switch to a 'double majority' voting system, with proposals requiring the support of at least 55% of the EU's Member States representing at least 65% of the Union's population to become law.

But the most sensitive issues, including changes to the EU Treaties and decisions on admitting new countries to the EU, are decided by a unanimous vote, giving each country the right to veto proposals single-handedly. The Lisbon Treaty would reduce the number of issues decided by unanimity, extending majority voting to around 50 new legislative areas.

The Council is chaired by each Member State in turn, for six months at a time, under a system known as the rotating Presidency. Under the Lisbon Treaty, the new President of

the European Council would chair EU summits and the EU's foreign policy chief would chair foreign ministers' meetings, but the rotating Presidency would be retained for all other Council meetings.

European Parliament

The European Parliament represents the EU's citizens and its members (MEPs) are directly elected by them every five years. Every EU citizen who is registered to vote is entitled to do so.

The present Parliament, which was elected in June 2004, has 785 members from all 27 EU Member States. They do not sit in national blocks, but in seven Europe-wide political groups. The centre-right European People's Party is currently the biggest group, with the centre-left Party of European Socialists the second largest.

MEPs represent all the different views on the EU, from those strongly in favour of closer European integration to those who want their countries to leave the EU.

The Parliament has four main roles:

- To pass EU laws, jointly with the Council, in many policy areas;
- To exercise democratic supervision over the other EU institutions;
- To approve or reject the budget proposed by the Council.
- To agree, with the Council, on the admission of new countries to the EU.

The Parliament is the only EU institution which is fully open to public scrutiny: it meets in public and its debates, opinions and resolutions are published.

Under the Lisbon Treaty, the number of MEPS would be reduced to 750, plus the Parliament's President. The Parliament's role would also be boosted by giving it joint decision-making powers in more policy areas.

Who decides?

Although the European Commission proposes new laws, it is the Council of the European Union (made up of ministers who are accountable to their national parliaments and voters) and the European Parliament (whose members are directly accountable to voters) which decide whether to adopt them or not. In areas where these two institutions have joint decision-making powers, proposals go through a process of negotiation designed to produce agreement on the final shape of the legislation. This can be a lengthy process lasting many months or years.

European Court of Justice

This Luxembourg-based court is made up of judges from each Member State and is responsible for ensuring that Member States abide by the laws they agreed to in Brussels and that EU law is interpreted and applied in the same way in each Member State.

European Court of Auditors

This Luxembourg-based court is made up of representatives from each Member State and monitors the way the EU budget is spent. It is responsible for ensuring that EU funds are properly collected and are spent legally, economically and for their intended purpose.



II. Immigration

Immigration is a sensitive political issue in many EU member states. There is intense debate over whether allowing people from outside the Union to live and work in the EU is good or bad for our economies and societies. The question of how tough governments should be in preventing illegal migrants entering their countries and sending back those found to be living here illegally already is also hotly debated.

These arguments are intensifying in the current economic downturn, which is pushing up unemployment in many parts of Europe and intensifying the pressure on government budgets.

EU member states are also having to cope with the challenges posed by an increasingly mixed population, with rapid social, cultural and religious changes in their societies - which some see as a positive development but which is also prompting concerns, on the one hand about potential threats to the traditional European 'way of life' and, on the other, about increased racism and discrimination against migrants and ethnic minorities.

EU immigration policy only deals with people coming to live and work in the EU from other parts of the world. It does not affect people from the EU's 27 member states, as they have the right to work and live anywhere in the Union (although some member states have imposed temporary restrictions on this right for people from the Central and Eastern European countries which joined the EU in 2004 and 2007). This issue is therefore not addressed in this paper.

The integration of migrants to enable them to play a full part in the economic, social, political, civic and cultural life of their 'host' country is also a much-debated issue, prompting discussion about the extent to which migrants should be required to adapt to the societies in which they now live or be free to follow their own customs and traditions. This issue is, however, beyond the scope of these briefing materials.

So too is the question of how to deal with applications for asylum from those who come to the EU seeking international protection because they risk persecution in their home countries rather than for economic reasons.

There is also much debate over how to describe those who enter, live and work in a country without the necessary permission to do so. Many argue that they should not be described as 'illegal migrants' as it is impossible for a person to be 'illegal' - it is their activities which are illegal. They therefore prefer the term "irregular". For simplicity's sake,

however, this document uses the word "illegal", as it is still the term most frequently used in the public debate.

Key issues

The key challenge for EU and national policy-makers is to reconcile the various objectives of policies in this area: attracting the migrants from outside the EU that many believe it needs for economic reasons while deterring others from entering the EU illegally.

These two issues - legal and illegal migration - are closely connected and frequently mixed up, with the debate over combating illegal migration linked in many people's minds with the extent to which legal migration should be allowed or indeed encouraged.

This is prompting many EU member states to adopt a two-pronged approach: seeking to strengthen their own and the EU's borders to stop people entering the Union without permission, while opening channels for legal migration to attract the workers that many say the EU needs to fill labour market shortages; i.e. a lack of workers to fill certain jobs. Some argue that EU policies on legal migration can only be credible if the EU first demonstrates that it can deliver effective policies on illegal migration.

In fact, at EU level, much more progress has been made in developing tougher control mechanisms (border checks on people entering the Union etc.) and dealing with illegal migration than in harmonising policies on legal migration, for the reasons explained below.

Then there is the question of 'who should do what': to what extent should individual EU member states be free to decide their own immigration policies and to what extent does this issue need to be tackled at EU or even at global level in today's increasingly mobile world, where people can move much more easily between countries?

Key facts

Nearly 4% of the EU's population are migrants from outside the Union. They move to the EU for a variety of reasons, including to work, study or join family members.

It is estimated that there are now more than 200 million migrants worldwide (3% of the world's population). Of these, 42 million migrants live in the EU area, 14 million of whom are

EU citizens living in another member state and 28 million of whom were born outside the Union.

Migration patterns vary widely across the EU. Non-nationals (both EU and non-EU citizens) make up less than 4% of the total population in Finland and Hungary. At the other end of the scale, they account for more than one-third of Luxembourg's population.

The type of migrants and where they come from also differ greatly. In France, the families of migrants already in the country have accounted for more than half of all those entering France in recent years, while other countries welcome a larger proportion of new migrant workers. In Germany, Turkish migrants are by far the largest migrant population, while in the UK, the three largest migrant populations are Irish, Indian and Polish.

Generally speaking, however, the continuing wide gap between the world's richest and poorest countries is leading to increased migration, with the EU's geographical location putting its southern and eastern external borders under particular pressure.

Many migrants live and work legally within the EU, having applied for and been granted the necessary visas to do so. The precise number in each country depends on the immigration policies each government has put in place and how many legal migrants it decides the country wants and/or needs.

But others enter the EU illegally (without the necessary visas) or enter legally but then stay on and continue to work illegally once their visas have expired. European Commission figures suggest that there were up to 8 million illegal immigrants within the EU in 2006, and that more than half of these had entered the Union legally but then exceeded their right to stay.

The debate about how many migrants to admit each year is taking place against the backdrop of changes in Europe's population, which has already begun to shrink in some EU countries and is ageing because people are generally having fewer babies and living longer than in the past.

Overall, the EU's population is forecast to fall from 495 million now to 472 million by 2050, with the number of those aged over 64 rising from 81 million now to more than 141 million and the number of under-15s falling from just under 80 million now to just over 63 million (although again the pattern varies from country to country).

If this happens, it would mean fewer people of working age to support a growing number of elderly, retired people. This would result both in shortages of workers to fill some types of job vacancies and increased burdens on the welfare state, with fewer people paying the taxes needed to fund pensions, healthcare etc. for the elderly.

Key elements of the immigration debate

Many experts argue that the resulting shortages of workers cannot be filled through increased fertility and skills training alone. This has prompted a growing debate over what role, if any, legal migration should play in filling these shortages and expanding the EU's workforce, with the discussion focusing on who and how many.

Many employers increasingly complain that they cannot find the workers they need to fill vacancies from within the national workforce. They also say that although unemployment is rising in the EU because of the economic downturn, there are still shortages of workers in some sectors.

Furthermore, most of the migrants currently in the EU are in low-skilled jobs. Those who are in favour of admitting more migrants argue that the Union's ambitions to remain a global economic player and lead the world in key sectors (such as technology and services) mean it needs more workers with specialised and high skill levels who may be available in greater quantities in other parts of the world.

They therefore argue for a two-pronged approach: measures to create a better trained national workforce combined with the admission of more migrants to fill the remaining shortages.

But others argue that Europe does not need migrants to fill these shortages. They point to rising levels of unemployment in some EU member states, and insist that the answer lies in retraining 'national' workers to provide them with the necessary skills and making it easier for them to switch jobs and professions.

They also argue that admitting many more migrants would put too great a strain on public services such as housing and healthcare, with governments whose budgets are already over-stretched facing significant additional costs to provide the extra services required.

This is coupled with concerns about the social, cultural and religious impact that migrants are having on local communities. Some argue that they will fundamentally change the European 'way of life', with particular attention focusing in recent years on the impact of growing Muslim communities on European societies. There are also concerns that European societies are becoming increasingly fragmented, with both migrants and the communities in which they now live continuing to follow their own traditions and customs instead of adapting to increased diversity.

But others argue that a more mixed population can be an asset for society as a whole and point out that legal migrants contribute to the cost of providing the additional public services required to 'cater' for their needs through the taxes they pay, in the same way that 'national' workers do.

Again, the debate about the cost of providing public services to migrants is frequently mixed up with arguments about the costs associated with illegal migrants. A number of international agreements state that illegal migrants should receive essential medical care and their children should be allowed to attend school, as these are both considered fundamental human rights. In practice, however, it can be difficult for them to do so. Also, given that most illegal migrants have made no social security contributions, few are eligible to receive related benefits such as pensions, unemployment benefit or child support, although in many countries, some basic assistance is made available, such as food, clothing or housing.

Who decides?

Immigration policies are dealt with at a number of levels, given that migration is a global phenomenon which has implications for the EU as a whole, individual member states, regions and local communities.

Internationally, a broad framework of treaties and international laws govern migrants' rights. At the European level, EU member states are also working to create a common framework of laws to govern immigration.

In 1999, EU leaders agreed to create what they described as an area of 'Freedom, Security and Justice', giving the EU new powers in a number of areas, including immigration and asylum policy and border controls. However, three EU member states - the UK, Ireland and Denmark - have reserved the right to 'opt out' (be exempt from) any EU legislation in these areas.

EU leaders also agreed to coordinate their national policies on legal immigration, with the ultimate goal of creating a single regime for all migrants wishing to enter the Union.

But the EU's role is currently limited to setting basic rules on the terms and conditions of entry and residence for migrants: national governments still have full control over their immigration systems and deciding how many and what type of migrants to admit to their country, granting work and residence permits, etc.

One of the main arguments for giving the EU a greater role in this area is the principle of free movement enshrined in the treaties setting out the EU's role and powers, which gives its citizens the right to live and work anywhere in the EU, and the abolition of border controls between most EU countries.

This has prompted concerns that migrants could take advantage of the lack of controls on most of the EU's internal borders to move around without permission once they are inside the Union. It also means that decisions taken in one country about how many migrants to admit and what to do about illegal migrants already living and working could have

a spill-over effect on other member states. (Some argue that legal migrants should be given the right of free movement within the EU, on the grounds that this would make it easier to match the supply of available workers with employers' needs.)

All this has encouraged EU governments to work together more closely to manage their borders and set basic rules for dealing with legal migration, without attempting to develop a 'one size fits all' policy, given the differences in member states' economic situation, need for migrant workers, existing immigrant population, etc.

There are some who would like the EU to be given an even greater role in migration policy, but there are others who want its existing powers to be scaled back significantly.

Some question whether the EU needs a common immigration policy at all, arguing that this is an issue which should be left entirely to individual member states. They insist on the fundamental right of national governments to decide who to allow into their country and how many migrants their economy needs, whether their country would gain or lose from having a more diverse population, and whether they can afford to pay for the additional public services required by a growing migrant population.

The EU's current powers to deal with immigration policy fall into two categories:

Legal migration

Any EU measures related to legal migration must be unanimously agreed by all 27 member states. The European Parliament must be consulted on proposed new measures, but its opinion is not binding.

In most areas of EU policy, the European Commission has the sole right to propose new EU laws. This is designed to ensure that new measures are only proposed if they serve the interests of the EU as a whole, rather than just those of one particular country or group of countries. However, because immigration policy is a particularly sensitive issue, the Commission shares the right to make new proposals in this area with national governments, which means either the Commission or a member state can make a proposal.

The EU's scope for action in this area is also limited, as outlined above, with individual member states retaining control over deciding who is given the right to enter, live and work in their country, for example through:

- quota systems - setting ceilings on the total number of migrants that can be admitted in any one year, with the decision primarily based on how many additional migrants it wants overall rather than on meeting specific economic needs (as, for example, in Austria, Italy and Portugal); or

- points systems - focusing on attracting migrant workers with the skills needed to fill job vacancies by identifying what skills are required and then judging applications for residence and work permits on the basis of whether they meet those needs (as, for example, in the UK).

In some countries, regions also have powers to decide on the rules for granting residence and work permits (for example, in Belgium, Germany and Spain).

The Lisbon Treaty, which would reform the EU's decision-making procedures, includes changes in the way in which policies on legal immigration are decided. More decisions would be taken by the member states (in the Council) by majority vote, abolishing the current requirement for all 27 countries to agree all new proposals unanimously. The European Parliament would also have to approve the proposal for it to become law and the European Commission would be given the sole right to make proposals for new EU measures in many areas related to immigration.

Supporters of the changes argue that the current requirement for unanimous decisions on proposed new laws and the limited role played by the Commission and Parliament in this area is hampering progress in developing a common European approach. They also claim that it makes governments less democratically accountable for the decisions they take at EU level.

Critics of the Lisbon Treaty provisions say they would give too much power to the EU over what should remain a national issue.

However, even if the Lisbon Treaty does eventually enter into force, the differences in member states' approaches and the political sensitivity of this issue mean that progress in creating common immigration policies will continue to be slow.

These differences can in part be explained by member states' past experiences of immigration. While some have a long history of admitting migrant workers, others regarded themselves until recently as 'non-immigration countries' because migrants were only admitted (at least initially) on a temporary basis. Central and Eastern European countries have also yet to experience immigration on a significant scale because of their lower levels of economic development.

In addition, while all EU countries are experiencing similar population trends, the size, scope and speed of these changes – as well as the measures being adopted to address them – vary greatly.

Table 1¹: What should the EU do to face legal migration² ?

Policy option	Arguments made for	Arguments made against
Zero immigration – preventing any more migrants entering the EU	• Rising unemployment means the EU does not need any more migrant workers: the available jobs should be given to countries' own citizens • Training 'national' workers to give them new skills will be enough to bridge the 'skills gap' and fill job vacancies • Halting immigration would improve public services such as housing and medical care by reducing the additional burdens placed on them by more migrant workers • Migrants are creating increasingly fragmented societies, challenging the 'European' way of life because they come from countries with different historical, cultural and religious traditions	• The EU's borders can never be made completely 'watertight' • Providing the level of border controls needed to stop people entering the EU illegally would be very expensive • Preventing any more migrants coming to the EU will not address the problems caused by the EU's changing population, which will result in there being too few workers to fill all the available jobs, and would thus hamper economic growth • Training nationals will not be enough to bridge the 'skills' gap in the EU, particularly to fill shortages in the public services sector (such as healthcare) • It would increase the administrative checks on EU citizens as well as non-EU citizens to ensure no migrants enter the country • Anti-immigration policies foster negative perceptions of migrants as a 'threat' to society • A more mixed, diverse population is an asset to society
Quota systems: based on setting an absolute limit on the total number of migrant workers admitted to a country each year. This can also be achieved through partnerships: using bilateral and multilateral agreements with other countries to source the extra workers a country needs.	• This reduces the impact of the EU's changing population on the economy by boosting the total workforce available to employers • It addresses both the high- and low-skills needs of the country concerned • It works on a first-come, first-served basis, and does not discriminate according to education, skills, or other criteria • It enables governments to plan public services better because they know exactly how many extra workers they will need to 'cater' for • It limits the risk of increasingly fragmented societies challenging the 'European' way of life, through strict limits on the number of migrants who can be admitted	• Quotas are a blunt instrument: it is difficult to set quota levels which accurately match the country's needs and can be adapted quickly to changing economic circumstances • The skills of the migrant workers who enter a country in under this system may not match the specific needs of employers for certain types of workers • It does not address the particular need for high-skilled workers in some sectors to give the EU a competitive edge

¹ The tables below set out the options put forward – and the arguments made by supporters and opponents of these options – in the public debate on the issues outlined above. They do not assess the evidence for and against these arguments: they simply aim to summarise what politicians, campaigners and experts say in supporting or opposing particular approaches.

² EU member states often use a combination of the policy options listed below, depending on the political and economic situation in their country. No member states have opted for either halting immigration altogether or taking a completely laissez-faire approach, but some political parties in Europe argue for zero immigration and some countries (for example, Sweden) have moved towards a demand-driven, rather than controlled, approach.

Policy option	Arguments made for	Arguments made against
Selected migration (government-led): using a points system to determine who can enter their country on the basis of education, language, age and other criteria	• It allows countries to 'select' the type of migrants they need to fill labour and skills shortages caused by changes in the EU's population • It allows countries to select those migrants they believe will become 'good' citizens as well as contributing to the economy • It makes it easier for governments to provide adequate public services such as housing, hospitals etc., as they know how many extra workers they will need to 'cater' for • It makes it easier to provide public services for the whole population as governments can select the migrant workers urgently needed to fill the staffing gaps in these sectors	• This places an administrative burden on governments to assess would-be migrants' skills etc. and give them a 'score' • It is difficult to assess quickly what skills a country needs at any one time and take account of changes in the economy which might alter those needs • It can create a mismatch between the number and type of migrant workers needed and the supply of such workers; i.e. governments may admit workers employers no longer need and vice versa • It does not address the need for low-skilled workers (who currently account for the majority of migrants) to fill shortages in some sectors
Selected migration (employer-led): allowing companies to determine what workers they need and when, focusing on those with skills which are in short supply in the EU (e.g. health, engineering)	• It helps ensure the migrants who are admitted meet the economy's needs, as employers know best what types of workers they need and where the shortages and skills gaps are • It means that employers can 'import' the skills they need without putting EU citizens' jobs at risk • It reduces problems of integration, language skills, etc, because high-skilled workers are generally perceived to find it easier to integrate into their 'host' society • It is easier to administer than some other systems	• It means governments have less control over who enters their country • It risks putting a much greater burden on public services as it could lead to large influxes of migrant workers • It adds to the cost of providing public services, with taxpayers – not the companies who benefit from the additional workers – footing the bill • Employers may choose to recruit cheaper migrant workers to lower costs, thereby reducing general wage levels and depriving EU citizens of jobs

Policy option	Arguments made for	Arguments made against
“Laissez-faire” approach: do not impose any restrictions on the number and type of migrant worker admitted but instead let the market decide by allowing in everyone who can find a job	• It is cheap to implement than other systems as visa checks could be abolished • It improves a country's competitiveness because it leads to more efficient matching of the supply of workers with employers' demands • Employers can recruit workers from anywhere in the global labour market to fill job vacancies easily, provided the mechanisms exist to do so • The increased cost of providing public services for additional migrant workers is met by the taxes they pay • It reduces global inequalities by offering opportunities to all those who want to come and work in the EU	• Migrant workers could ‘take’ EU citizens' jobs by offering their services more cheaply, being willing to work much longer hours etc • This could also lead to lower wages and poorer working conditions for everyone, with cheap ‘imported’ labour driving salaries down generally • Employers may abuse this system and violate worker rights • Governments have no control over the overall size of the population, making it hard to plan for the provision of adequate public services and putting a significant and costly strain on those services • It Increases the cost of public services to ‘cater’ for the additional migrant workers • It increases global inequalities as may lead to increased ‘brain drain’ from developing countries to the EU

Illegal migration and border controls

EU member states retain control over their own borders, although the EU has put in place a number of instruments to ensure they comply with some basic rules to ensure some consistency in the way member states deal with illegal immigrants, and progress towards developing common policies to tackle illegal migration is being made much more quickly.

One of the reasons for this is the fact that once migrants are inside the EU, they can move around relatively easily because of the abolition of passport checks on many of the EU's internal borders. This means that member states have a shared interest in having strong 'external' borders.

As a result, the EU has been given greater powers to introduce measures on illegal migration and border controls. It is also easier to reach decisions on new proposals in this area, as they can be agreed by majority vote rather than requiring the unanimous approval of all 27 member states. But the European Parliament must agree to any new legislation.

One particularly controversial issue in this area is that of what is known as 'burden-sharing' - the extent to which those EU member states which have to cope with particular large numbers of people attempting to cross their borders illegally because of their geographical location should be helped to do so by countries which are under less pressure or have no external EU borders.

Table 2. What should the EU do to face illegal migration³?

Policy option	Arguments made for	Arguments made against
Strong borders: building walls and increasing border and security checks to stop illegal migrants from entering the EU	• It prevents more migrants entering the EU without permission by crossing its borders illegally • It contributes to reducing international crime, as tough border controls can also combat drugs smuggling, people trafficking etc. • It enables governments to get a much clearer picture of who is entering their country and devise policies to cope with the additional demand for public services etc.	• It is expensive to implement because of the manpower and equipment needed for increased border checks etc • It could lead to increased loss of life as would-be migrants are forced to take more hazardous routes to the EU • It could boost the smuggling and trafficking business (and prices) as the journey becomes more difficult for migrants to make alone • It makes travel much less convenient for EU and non-EU citizens because of potentially lengthy administrative checks • Civil liberties are eroded because of the increase in border checks • It does not tackle the largest group of illegal migrants: those who stay on after their visas have expired • It is unlikely to ever be 100% effective because some illegal migrants are bound to 'slip through the net'
Strong checks within countries as well as on entry/exit: biometric identity cards; increased inspection powers for police, labour and immigration officers; imposing sanctions on employers who hire illegal migrants	• It reduces the number of people living and working in a country illegally • It enables governments to have a clearer picture of who is in their country at any one time • It can address and prevent both illegal border-crossing and identify visitors staying on after their visas have expired • It can reduce illegal working (including by those who are legally resident in a country but do not have a work permit) • It penalises employers who flout the rules and may be exploiting illegal workers	• It is expensive to implement, with high equipment and manpower costs (although the equipment costs will fall once the necessary systems have been installed) • Civil liberties are eroded, with increased checks on EU citizens and non-EU citizens both when crossing EU borders and inside countries • It raises data protection issues as, for example, it requires travellers to provide more information about themselves which may later be used for other purposes

³ Countries typically use a combination of the policy options listed below to deal with existing illegal migrants as well as preventing more from entering the EU now and in the future. One key question facing EU member states is that of cost: while all countries allocate resources to securing borders, some also devote significant resources to dealing with illegal migrants already living in their country. The decision on where to strike the balance – and how much to spend – generally depends on the state of the political debate and public attitudes towards illegal migration in each country.

Policy option	Arguments made for	Arguments made against
Developing partnerships with non-EU countries to strengthen their borders and deter people from trying to enter the EU illegally	• It can reduce the need for costly programmes to send illegal migrants home or detain them in the EU • It passes much of the responsibility for identifying and detaining would-be illegal migrants to the non-EU country concerned • It creates an additional hurdle for would-be illegal migrants to overcome, with strengthened national border controls at either end of their journey	• It requires high level of trust between partner countries • Partner countries could hold EU governments 'hostage' for more money in return for cooperation • The right to leave one's home country is an internationally recognised human right • There are no guarantees against corruption or abuse of power in partner countries, and migrants could face human rights abuses • Tougher border controls in non-EU countries could increase loss of life, and boost criminality, as illegal migrants will still try to cross those borders • It shifts a weighty administrative burden to countries with limited public resources
Developing partnerships with countries to address the root causes of migration – by promoting economic development, democracy, and rule of law and reducing the incentives to move	• It increases job opportunities and incomes, and improves working conditions, in developing countries • It helps prevent people undertaking risky journeys to richer countries, and thus the potential loss of life • In the long term, it will reduce global inequalities – and the EU has a moral commitment to help do this regardless of the impact on migration	• It requires a great deal of foreign investment and development aid to make a real difference • It requires a strong, coherent external relations policy from all EU member states, which is difficult to coordinate • There is some evidence that development increases, rather than decreases, migration flows because more people can afford to travel in search of new opportunities

Table 3. dealing with illegal migrants already in the EU

Policy option	Arguments made for	Arguments made against
Detention and 'return': increased facilities for detaining illegal migrants, in order to send them home as quickly as possible	• It reduces the number of illegal migrants in a country • It may discourage people from attempting to come to the EU given the increased risk of being detained for long periods of time and being sent home • It reduces the size of the 'black economy' in which illegal migrants are paid by employers in cash and do not pay taxes • It ensures that employers cannot exploit illegal workers by paying them poorly and failing to give them minimum rights, by removing these workers from the labour market	• To be effective, it must be combined with strong checks on those entering and moving around a country • It is expensive and can never be 100% effective because some illegal migrants are bound to remain undetected • It means illegal migrants already in a country cannot benefit from amnesties and be used to fill existing labour market shortages • It raises human rights issues over the long-term detention of illegal migrants (when they cannot be sent back immediately) or the risk that they will be sent back to dangerous countries
Selective laws to 'legalise' illegal migrants already in a country: offering them legal status on case-by-case basis, depending on whether they have job/family etc and are likely to impose burdens on public services etc.	• It reduces the number of migrants living and working illegally in a country • It provides a flexible and relatively cheap solution to the problem of illegal migrants already in a country • It enables governments to respond to employment market requirements at any given moment by legalising those illegal migrants the country needs • It ensures that employers treat all workers equally, rather than exploiting those without legal status • It could allow illegal migrants already in a country to be 'regularised' and used to fill labour market or skills shortages • It boosts government revenues as previously-illegal migrant workers start paying taxes, and are able to contribute more to the economy and their local community	• It creates a 'pull' factor for illegal migration, as it could encourage more people to attempt to enter, live and work in a country without permission in the hope of acquiring legal status later • It rewards illegality by enabling illegal migrants to acquire legal status and stay in their 'chosen' country • It rewards employers for hiring illegal migrants by allowing them to stay • Allowing previously illegal migrants to acquire legal status and stay in a country imposes an additional burden on public services such as housing and medical care.

Policy option	Arguments made for	Arguments made against
Blanket legalisation: amnesties for illegal migrants in a country at any point in time, offering them the opportunity to live and work there legally.	• It reduces the number of migrants living and working illegally in a country • It is cheap to implement as governments do not have to decide on applications for permission to stay and work on a case-by-case basis • It allows illegal migrants already in a country to be 'regularised' and used to fill labour market or skills shortages • It boosts government revenues as previously-illegal migrant workers start paying taxes, etc in large numbers	• It could encourage more people to attempt to enter, live and work in a country without permission in the hope of acquiring legal status later • It rewards illegality by enabling illegal migrants to be 'legalised' and stay in the country • It rewards employers for hiring illegal migrants by allowing them to keep employees who were taken on illegally • It reduces incentives for illegal migrants to cooperate in voluntary return programmes • The government has no control over the number of migrants because it is hard to establish how many illegal migrants there are in a country at any one time and judge how many will apply for legal status • It could impose a serious strain on public services given the difficulties involved in establishing how many illegal migrants would be 'legalised' under any given programme

What has been done to date?

Legal migration

The EU set out a plan for 'economic migration' (i.e. movements of people between countries for work reasons) in 2005.

This included proposals for a new EU law giving all non-EU migrant workers the right to be treated the same as national workers in their 'host' country in relation to issues such as pay and terms and conditions of employment. This is still being negotiated.

It also suggested introducing specific EU laws to cover the terms under which different types of migrant workers - such as the highly-skilled and seasonal labour - would be allowed to enter, live and work in EU countries.

The EU has already agreed common rules for a number of migrant groups, such as family members joining existing migrants, long-term residence status for those who have lived in a member state for five years, and smaller categories such as students and researchers.

A system for admitting highly-skilled migrants into the Union - known as the Blue Card scheme - is currently being negotiated by EU governments. This would give workers at the 'top end' of the jobs market greater rights, such as allowing family members to join them more quickly. But workers will have to fulfil some key conditions to qualify for a Blue Card: they must have a university education, a job offer with a minimum one-year contract and a salary 1.5 times the average gross wage in the country they are moving to. Furthermore, Blue Card holders will not have an automatic right to work anywhere in the EU - only in the country which granted them the card.

The European Commission is due to propose other measures targeted at certain groups of migrant workers, including seasonal workers and paid interns, in 2009. These will include the terms for letting such workers come into the EU, their rights while living here and the terms under which they can be employed. In the case of seasonal workers, for example, it may set a limit on how long they can continue working in the EU and offer preferential treatment to those who have previously worked in EU member states.

Again, these basic rules would not replace national immigration systems in each member state.

In a new 'Immigration Pact' agreed at an EU summit in October 2008, member states explicitly committed themselves to focusing on attracting highly-skilled workers and others with skills which are in short supply in Europe in the coming years, in line with current national and EU legislation.

Illegal migration

To prevent people entering the EU without permission, the Union has created a number of mechanisms for policing its external borders jointly. These include a common code for dealing with would-be migrants at the EU's borders and an agency, Frontex, to oversee those borders.

Frontex is tasked with ensuring operational cooperation between member states in managing borders, analysing potential risks, helping EU countries to train national border guards, and organising joint operations to send illegal migrants back to their home countries.

The second key issue in relation to illegal migration is the question of what to do about those already living and working illegally inside the Union.

EU legislation setting basic rules to govern the terms and conditions for sending them home - known as the Returns Directive - has also been agreed, and penalties for employers who hire illegal migrants are being negotiated.

Decisions by some EU governments to grant amnesties (known as 'regularisations') to illegal immigrants already living in their countries, allowing them to apply for the legal right to remain, live and work there, have fuelled concerns about controlling the flow of migrants.

Supporters of such amnesties argue that these workers are needed by EU's economy to fill labour shortages, and it therefore makes sense to take them out of the 'black economy', so that they start paying taxes and so that employers cannot take advantage of their illegal status by, for example, paying them less than the minimum wage.

Critics argue that amnesties simply reward illegality and may encourage more migrants to try to enter the EU without permission in search of a better way of life, in the hope of being legalised and given official permission to remain at some point in the future.

In response to such concerns, a mutual information system has been set up, requiring EU governments to inform the European Commission of any changes to their immigration and asylum policies (such as amnesties) which they believe are likely to have an impact on other member states.

The new EU Immigration Pact agreed in 2008 states that member states will no longer organise 'mass' amnesties (also known as regularisations), although they may still 'legalise' migrants on a case-by-case basis. The pact is not legally binding, but carries political weight because EU governments have committed themselves to abide by it.

Migration and EU foreign, development and trade policies

Migration trends are closely linked to globalisation, with countries' economies becoming increasingly inter-connected through expanding world trade, and the continuing gap between rich and poor countries across the world.

Many of those who migrate to the EU would not do so if there were opportunities to work and earn a decent living in their home countries. This has prompted policy-makers to look more closely at how they can help make migration a choice rather than a necessity.

At the international level, this has resulted in an annual forum – known as the Global Forum for Migration and Development – which brings together more than 160 governments and non-governmental organisations to discuss the many issues involved.

At EU level, governments have agreed a new approach – known as the Global Approach to Migration – which focuses on improving relations with non-EU countries to make it easier to manage migration.

Most of the work in this area to date has been with countries neighbouring the EU, with the Union offering easier and cheaper access to visas for nationals from those countries and funding for border controls in return for support in preventing illegal migration. This is being done through 'readmission agreements' under which neighbouring countries agree to take back illegal migrants who travel through their territory on their way to the EU.

Recently, the EU has begun building on this approach by negotiating 'mobility partnerships', with individual non-EU countries to cover all aspects of migration management. These are signed collectively by the EU and individually by those EU member states which wish to do so.

Many member states are also drawing up their own individual agreements with developing countries to manage migration from these countries. Others are investing in development initiatives with the specific goal of offering migrants already in their country the opportunity to return home.

These policies focus on both illegal and legal migration, with southern EU member states in particular focusing on offering legal migration programmes in return for cooperation on border controls to prevent illegal migration. In the longer term, development policies are designed to improve economic opportunities at home to reduce the incentive for people to leave.

The Union also uses a combination of aid and trade policies to help boost economic development in poorer countries and improve living standards, partly in an effort to reduce the incentive for people to emigrate. The EU and its Member States provide aid totalling more than €30 billion a year to developing countries. About €6 billion of this is channelled through the European Commission; the rest comes directly from national governments.

In an effort to boost economic growth in developing countries, the EU has also reduced or removed tariffs and eliminated quotas on most of its imports from such countries to make it easier for them to sell the goods they produce to EU countries and boost their incomes.

It has also taken many initiatives under its 'Common Foreign and Security Policy', a mechanism for coordinating the foreign policies of the EU's 27 member states. Decisions in this area are taken by governments, with the European Commission playing only a limited role.

Initiatives launched under this policy include diplomatic efforts to achieve peace in areas of conflict, sending monitors to troubled areas and providing peace-keeping troops. Helping to resolve conflicts and promoting peace and stability are seen as key to reduce the number of people fleeing from their home countries in the search for a better, safer life.



III. Climate change

There is now a general, although not universal, consensus that the world's climate is changing, with a rise in global temperatures and more extreme weather patterns which could have serious consequences for the planet. The vast majority of scientists also agree that the main causes of this change are man-made.

As a result, this issue has moved steadily up the international agenda in recent years and has led the European Union to set itself a range of ambitious targets for contributing to the fight against climate change.

There is, however, far less consensus on how the burden of taking the necessary steps should be shared – between richer and poorer countries around the world, between EU member states, and between governments, industry and consumers.

The recent financial crisis and subsequent economic downturn have also prompted some to argue that the Union can no longer afford to take the steps required to meet its targets and that they should be scaled back – or at the very least delayed - to avoid damaging the EU's economy in these difficult times.

Others insist that both climate change and the long-term implications of the EU's dependence on imported energy are too serious to justify scaling back its ambitions. They also argue that delaying action now and dealing with the consequences later will be far more expensive and the changes required will be far more difficult to implement the longer we leave it. Finally, they maintain that 'greening' the EU's economy could help boost economic growth and create jobs, as well as helping it to compete in international markets.

Many also point out that the economic downturn could itself also help in the fight against climate change, with falling demand for goods in many parts of the world leading to a reduction in the types of activities which most scientists blame for the rise in temperatures and more extreme weather patterns. This is prompting some to argue that the EU does not need more ambitious targets now, while others say it means the EU has more room for manoeuvre to meet them.

EU governments agreed in December 2008 to stick to the targets, but some people continue to argue for a less ambitious approach. This issue is bound to surface again in forthcoming international negotiations on a new global agreement to fight climate change.

The climate change debate is also linked to other key questions facing the EU in relation to its environmental and

energy policies: how secure Europe's supplies of energy are (i.e. whether EU member states rely too much on imported energy generally and/or on imported energy from just one country or source); how to ensure EU companies can continue to compete with rival firms around the world in a globalised economy; and how to ensure the economy develops in a sustainable way.

These issues are touched on in this paper only in so far as they relate to the climate change debate.

The scale of the problem

The United Nations' Intergovernmental Panel on Climate Change (a scientific intergovernmental body set up to provide objective information about climate change) has predicted that world temperatures could rise by between 1.1 and 6.4°C during this century, as a result of rising levels of greenhouse gases - including carbon dioxide and methane - being emitted into the atmosphere. These emissions contribute to 'trapping' heat on the earth's surface, a phenomenon known as the 'greenhouse effect'.

In recent decades, scientists have recorded significant increases in greenhouse gas emissions. The UN panel concluded in a May 2007 report that human activity - for example, the burning of fossil fuels such as coal and oil (which are responsible for the bulk of carbon dioxide emissions), deforestation, transport, irrigation and agriculture – is largely to blame for this.

There are some who still question whether the planet really is getting warmer – and some who agree that it is, but challenge the UN panel's conclusion that human activity is to blame, arguing that changing weather patterns are a natural phenomenon. Others agree that temperatures have risen, but say it is impossible to make accurate predictions about future temperature increases and what impact this will have.

However, the vast majority of scientists argue that the scientific evidence is overwhelming and agree with the UN panel's conclusions.

The panel predicted that sea levels will probably rise by 18-59 cm and more outbreaks of extreme weather – such as floods, droughts, and tropical cyclones – are very likely. In the EU, some coastal regions will be at serious risk from rising sea levels and continental Europe faces the prospect of increased flooding.

Although temperatures will generally rise, extremes of both heat and cold are likely to become more common. It is expected that Europe's temperatures will rise so much that summers like that of 2003 (when maximum temperatures of 35-40°C were repeatedly recorded in July and August in most of Europe's southern and central countries) will be considered 'normal' by 2030.

Infrastructure such as roads, telecoms and energy installations are already being damaged during such outbreaks of extreme weather. In agriculture, crop yields are changing as a result of more unpredictable climatic conditions.

There are also fears that the health of the EU's population could be affected. Extreme temperatures put vulnerable groups such as the elderly at risk (the 2003 heatwave cost around 60,000 lives in Europe). Rising temperatures could also bring new diseases to the Union, with mosquito migrations northwards already causing an increase in malaria cases in parts of southern Europe.

However, climate change is expected to have a greater impact on the world's poorest countries than on others for two reasons. Firstly, because of their geographical location, which makes them more vulnerable to flooding and drought. Secondly, because they lack the resources to pay for the measures necessary to cope with its effects.

This has prompted some to predict big increases in the flow of would-be migrants to the EU, with more people fleeing from developing countries hit by water and food shortages caused by droughts. The EU has also voiced concern about a possible increase in conflicts in developing countries as a result of such shortages.

These predictions come against a backdrop of intensifying global economic activity and increasing energy needs worldwide, which have resulted in a sharp increase in the global demand for fossil fuels (oil, natural gas and coal) - which, when burnt, are a major producer of greenhouse gases.

The EU currently imports 50% of the energy it uses (including 90% of its oil and more than 50% of its gas). Unless action is taken to reverse current trends, this figure is expected to rise to 70% in the next 20-30 years.

This is raising concerns about the 'security' of the EU's energy supplies, which could be vulnerable to external energy 'shocks' (for example, sharp price increases) or a deterioration in relations with major suppliers. This could result in much higher imported energy prices or even disruptions to supplies.

Many argue that the measures needed to fight climate change would also help to combat this problem. They say the development of 'renewable energy' (energy generated by natural sources such as the sun, wind and water which are

constantly replenished by natural processes) and/or nuclear energy, coupled with greater energy efficiency, would help to reduce the EU's dependency on imported energy.

The international context

Most governments agree that climate change can only be tackled by concerted international action. This has led to a series of international agreements since 1979 setting common targets and identifying ways to limit the rise in greenhouse gas emissions and global temperatures. The next such major international conference is planned for December 2009 in Copenhagen under the auspices of the United Nations Framework Convention on Climate Change.

This meeting aims to get agreement on an ambitious global climate accord for 2013 onwards to replace the current international agreement (known as the Kyoto Protocol), which expires then. Ministers and officials from 189 countries are expected to participate in this conference.

Reaching such international agreements has never been easy, with arguments over just how serious the problem is and how much of the burden for combating it should be shouldered by different countries at different stages of economic development.

At the United Nations Conference on Environment and Development (known as the 'Earth Summit') in 1992, it was agreed that countries had "common but differentiated responsibilities". This meant that industrialised countries should shoulder more of the burden of fighting climate change because they were responsible for most of the greenhouse gas emissions to date, and because economic growth in developing countries is vital to alleviate poverty. Some argue that emission-reduction measures could hamper growth, and making these countries' economies more energy-efficient and less dependent on fossil fuels will take longer.

The summit agreed a Climate Change Convention, which led to the Kyoto Protocol in 1997. This aimed to stabilise greenhouse gas emissions at a level which would prevent "dangerous interference" with the climate, by setting legally-binding commitments for industrialised countries to reduce six types of greenhouse gas emissions.

Under the Kyoto Protocol, the world's richest countries committed themselves to doing more than others under the "common but differentiated responsibilities" principle. They promised to cut emissions by an average of around 5% below 1990 levels by 2012, with the then 15 EU member states collectively signing up to an 8% reduction, the US 7% and Japan 6%. In some cases, countries were allowed to increase their emissions and 'emerging' economies like China and India were not included in the targets.

To date, 183 countries plus the EU have ratified the Protocol, including, Brazil, Canada, China, India and Russia. However, the US - the largest per capita emitter of greenhouse gases until 2005 - refused to do so, citing its potential impact on the US economy, uncertainties over the scientific evidence on climate change, and the lack of obligations for other big economies like China and India to reduce their emissions.

In 2005, greenhouse gas emissions in the EU were around 5% below 1990 levels, but they have risen by 15.8% in the United States, by 47% in China and by 55% in India, according to the UN Framework Convention on Climate Change.

This issue has also risen up the international political agenda, amid increasing evidence of the scale of the problem and its likely impact. In June 2007, leaders of the G8 group of industrialised countries (the US, Canada, Russia, the UK, France, Italy, Germany and Japan) agreed that they would "aim to at least halve global carbon dioxide emissions by 2050", without specifying how they intended to do this.

It is against this backdrop that the international community will meet again this year in Copenhagen to try to reach a new agreement.

At a UN Climate Change Conference in Bali in 2007 and a follow-up meeting in Poznan in 2008, participants agreed on a roadmap, timetable and steps to reach agreement on a successor to the Kyoto Protocol by the end of this year. They also agreed to set up a fund to help vulnerable countries cope with the impact of climate change by funding concrete projects and programmes. But there were fierce arguments over exactly how much help should be given and this is likely to be a key issue at the Copenhagen conference.

New US President Barack Obama has announced a significant change in American policy on this issue. He has pledged to reduce US emissions to 1990 levels by 2020 and then by a further 80% by 2050, and both the US and the EU have promised to take the lead in pushing for ambitious global targets in Copenhagen.

But the economic downturn is prompting some to question whether the world economy can now afford this. Some also insist that any action is futile unless all countries sign up to the new agreement, no matter what their level of economic development. They point out that emissions from emerging economies are rapidly surpassing those of Western economies - for example, China is now the world's largest emitter of greenhouse gases, with 24% of the global total (although its emissions 'per person' are still relatively low compared to the EU and US).

But developing countries insist that the "common but differentiated responsibilities" principle agreed at the Earth Summit should continue to underpin any new agreement.

These arguments are echoed in the European debate about how much the EU should do. Some agree that the world's richer, developed nations should do more than other countries, but others argue that tough EU action is pointless if it is not matched by similar measures at global level. They point to a recent report from the European Environmental Agency showing that the EU currently accounts for only 10.5% of global greenhouse gas emissions and its share of the total is expected to fall sharply as demand from emerging economic giants such as China and India rises.

Table 4. How to share the Burden- at the international level?

Policy option	Arguments made for	Arguments made against
In any international agreement on targets, all countries around the world must make an equal contribution to achieving them	• Developing countries' emissions are growing faster than those of developed countries, so they need to do as much as everyone else • Without tough targets for fast-growing China and India, other countries' efforts will be pointless • It would reduce the risk of making Europe less competitive because everyone would face similar costs • It would reduce the risk of 'carbon leakage' because non-EU countries would have to introduce equally tough measures	• Richer countries have done more to cause climate change than poorer ones, and so have a greater responsibility to act • Richer countries can afford to do more • Developing countries need higher economic growth rates to narrow the gap between rich and poor nations, so should not have to do as much • Developing countries will refuse to sign any international agreement which requires them to make an equal effort, given their need to increase their economic growth and alleviate poverty
In any international agreements, the world's richer countries should shoulder more of the burden than poorer and developing countries	• Richer countries have done more to cause climate change than poorer ones, and so have a greater responsibility to act • Richer countries can afford to do more • Developing countries need higher economic growth rates to narrow the gap between rich and poor nations, so should not have to do as much • Developing countries will refuse to sign any international agreement which requires them to make an equal effort, given their need to increase their economic growth and alleviate poverty	• Poorer and developing countries' emissions are growing faster than those of developed economies, so they need to do as much as everyone else • Without tough targets for fast-growing economies like those of China and India, other countries' efforts will do little to combat the problem in the long term • Whoever is most to 'blame' for causing the current problem, it is unfair to 'punish' some countries more than others now • Richer countries have been hit hard by the financial crisis, so cannot afford to do more now

Who decides?

Given that climate change is having an impact right across the world, but has a local impact which varies significantly from country to country and region to region, it is dealt with at the global, EU, national, regional and local level.

The international level

Internationally, a broad framework of treaties and international laws govern climate change objectives. The European Commission negotiates these agreements on behalf of the EU, acting on a mandate from and in consultation with member state governments (the Council). The Council then decides (generally by qualified majority vote, although unanimity is required in some cases) whether to approve the agreement, after consulting the European Parliament. International agreements are binding on the countries which ratify them, but there are no mechanisms for 'punishing' them if they fail to live up to their commitments.

The EU level

One of the EU's main tasks, under the treaties which set out its role and powers, is to ensure a high level of protection and improve the quality of the environment. The focus is on taking preventive action based on the 'precautionary' principle, rectifying environmental damage and ensuring polluters pay for the damage they cause.

The European Commission is responsible for making legislative proposals to achieve these goals, which are then decided jointly by the Council (generally by qualified majority vote, although in some cases, unanimous agreement is still required) and the European Parliament, through a process known as 'co-decision'. The Lisbon Treaty, which would introduce changes in the way the EU is run, would extend the EU's powers (competences) in this area.

EU environmental laws are legally binding on the member states and can be enforced through the European courts.

The member states level

Individual member states are free to go beyond EU targets by maintaining or introducing stronger measures, as long as they do not conflict with existing EU laws and the principles outlined above. They are also responsible for deciding on the appropriate mixture of measures to achieve the targets they have signed up to at international or EU level.

All these levels of decision-making are inter-connected. For example, in the case of greenhouse gas emission reductions: a global agreement might commit signatories to the accord (the EU and its member states) to a specific target. This could lead to EU-level legislation, binding on all the member states, setting national targets and introducing EU-wide measures

to achieve them. Governments would then have to decide what action to take to meet their country's share of the overall target (or go beyond this if they want to). Local and regional authorities are also involved in implementing those measures on the ground and, in some cases, set their own targets.

The EU level

What has the EU done so far?

The international approach of setting legally-binding targets for countries to meet is mirrored in the EU. It sets common goals and then decides how the burden of meeting them should be shared between its 27 member states - and what measures are necessary to achieve them.

As indicated above, the EU has made progress in achieving the target it signed up to in Kyoto, but there is still some way to go to achieve the promised 8% cut by 2012. Some member states appear to be on course to meet the target (including Germany, the UK and Sweden), but others (such as Italy, Spain, France and Greece) do not.

Critics also argue that the EU must do more to reduce emissions 'at home', instead of taking advantage of provisions in the Kyoto agreement which allow countries to meet part of their commitments by helping to pay for emission-reduction projects in other countries (for example, renewable energy schemes in the developing world). But supporters of this approach emphasise that the aim is to reduce global emissions, and say any measures which achieve this are welcome.

Others argue that the level of emission cuts achieved within the EU to date has been a 'by-product' of other developments - such as the collapse of the East German economy and the UK's decision to switch from coal to gas in power production - rather than because of a genuine commitment to fight climate change. They say this means that much more can be done.

The EU has introduced a range of measures in order to meet the Kyoto targets and the subsequent ambitious goals it has set itself.

Key among these is the EU's Emissions Trading Scheme (ETS), which mainly covers 'heavy' industries (steel and cement) and electricity production, and is designed to create incentives for companies to reduce their emissions (see below for details).

Other measures have focused on promoting the production and use of renewable energy through, for example, laws setting binding targets for member states to reach; providing funding for renewable energy schemes; and measures to improve the energy efficiency of everything from electrical appliances to buildings, reducing carbon dioxide emissions from cars etc. (although some of these measures have yet to be implemented).

What has the EU promised to do next?

In March 2007, the EU committed itself to reducing its greenhouse gas emissions by at least 20% by 2020 (compared to 1990 levels) and by 30% if other developed countries agree to make comparable cuts under a new global agreement. It also pledged to turn Europe into an energy-efficient, low-carbon economy; i.e one in which energy is used more effectively and the economy does not rely so heavily on energy sources which harm the environment.

To underpin these commitments, EU leaders set themselves three other targets to be met by 2020:

- a 20% reduction in energy consumption “compared with projected trends”;
- an increase to 20% in renewable energy's share of total energy consumption;
- and an increase to 10% in the share of renewables in the transport sector - for example, petrol and diesel from “sustainably-produced” biofuels.

In January 2008, the European Commission proposed a package of measures designed to achieve these goals. These included proposals for sharing the burden between the EU's member states; new legislation on renewable energy; extending the scope of the Emissions Trading Scheme; measures to ensure sectors outside the scheme contribute to reducing emissions; and plans to promote ‘carbon capture and storage’ technology (to ‘capture’ carbon dioxide emissions from power plants and store them underground instead of releasing them into the atmosphere).

At a summit in December 2008, EU leaders agreed to stick to the 2007 targets and reached a deal on these proposals, but only after making significant changes to the original plan to: 1) reduce the feared impact of the proposed measures on the competitiveness of heavy industry; 2) establish a ‘solidarity fund’ to help the EU's newer member states implement the package; and 3) give them more time to adjust. The plan also envisages continuing to use EU funding for emission-reduction projects in developing countries to meet part of the targets.

All this has prompted some to question whether the EU is still committed to doing enough to reach its long-term goals.

Table 5. How far should the EU go?

Policy option	Arguments made for	Arguments made against
Do nothing, including withdrawing from existing international commitments to meet agreed targets for combating climate change	• In the short term, this would cost the EU nothing • The economic slowdown will reduce Europe's overall energy consumption and therefore reduce emissions without taking further action • If others are not abiding by their international commitments, why should the EU do so? • If the EU acts alone, it will have little impact on the climate change problem, given its increasingly low share of worldwide emissions • It would give industry flexibility in adapting to the impact of climate change by deciding for itself how much or little to do • Consumers could decide for themselves whether and how to change their behaviour to reduce consumption or invest in energy-efficient measures such as insulating their homes	• The long-term costs of adapting to climate change will increase if action is postponed or abandoned altogether • The economic slowdown will reduce the EU's overall energy consumption and reduce emissions, so it can do more than it has already promised in international agreements • The EU's credibility would be seriously undermined if it backtracks on the promises it has already made • The rest of the world – including countries where emissions are increasing most rapidly - might reciprocate, with potentially devastating consequences for the planet • Industry will become increasingly inefficient if it fails to adapt to the impact of climate change • The EU will lose its current competitive advantage in producing 'clean' technologies which it can export to the rest of the world
Abide by existing international commitments but do not go beyond them	• The EU is already doing enough to combat the problem • It would limit the cost, at least in the short term, of the measures needed to combat climate change • A new international agreement setting more ambitious targets is unlikely to be reached, and why should the EU do more than others? • The EU cannot afford to do more in the current economic downturn • The economic slowdown will reduce the EU's overall energy consumption and therefore reduce emissions without setting more ambitious targets	• The commitments which have been made to date are insufficient to deal with the scale of the problem • Failing to take tougher action now will make it more expensive to deal with the impact of climate change and prevent more damage to the planet later • The EU needs to show leadership to encourage other countries with fast-growing emissions to do more • The economic slowdown will reduce the EU's overall energy consumption and therefore reduce emissions, so it can do more than it has already promised in international agreements

Policy option	Arguments made for	Arguments made against
Only go beyond existing targets in the EU if the rest of the world follows suit	• This would ensure that the EU does not shoulder an 'unfair' share of the burden (why should we do more if others don't?) • In the short term, the EU risks becoming less competitive if it does more than others because of the cost of implementing climate change measures, and this could destroy jobs • Imposing additional burdens on EU industry would cause particular problems in the current economic downturn	• As some of the world's biggest economies, EU member states have contributed significantly to the current problem and therefore have an 'historic' responsibility to act whatever others do • The EU is still a major emitter of greenhouse gases • The existing targets are insufficient to deal with the problem • There is unlikely to be a new, more ambitious international agreement unless someone takes the lead
Set more ambitious targets in the EU whatever other countries do	• As some of the world's biggest economies, EU member states have contributed significantly to the current problem and have an 'historic' responsibility to act whatever others do • The EU is still a major emitter of greenhouse gases • EU member states are relatively rich and can afford to do more than many other countries around the world • The EU already has a highly developed economy, so does not need to grow as fast as developing countries, which need higher levels of emissions to support economic growth and reduce poverty • Moving to a low- carbon economy will promote innovation, boost investment, create jobs and give the EU opportunities to gain from developing 'clean' technologies and exporting them worldwide • The economic downturn will lead to a reduction in energy consumption and therefore emissions, making it easier for the EU to meet more ambitious targets • Someone has to take the lead to encourage other countries to sign up to more ambitious targets globally	• The EU would shoulder an unfair share of the burden of addressing the climate change problem • Not all EU Member States are wealthy and this would impose an unfair burden on its less developed economies • In the short term, the EU would become less competitive in global markets because of the cost of climate change measures, destroying jobs • If the EU does more whatever others decide to do, it would discourage other countries from signing up to tougher commitments • It increases the risk of "carbon leakage", with energy-intensive industries moving to non-EU countries where regulatory regimes are laxer and where it is less costly to pollute. This could cost jobs in the EU and would fail to reduce global emissions • In the current economic downturn and in an increasingly competitive global climate, the EU cannot afford to do more than others

Policy option	Arguments made for	Arguments made against
Keep the EU's current ambitious targets but delay action until the economic situation improves	• This would avoid imposing costly burdens on EU industry at a time when it is struggling to cope with the impact of the economic downturn • The economic slowdown will reduce the EU's overall energy consumption and reduce emissions without taking further action now	• Delaying action until the economic situation improves will make the measures needed to combat climate change far more expensive and difficult to implement • The economic slowdown will reduce the EU's overall energy consumption and reduce emissions, so it will be easier for it to meet more ambitious targets

Burden-sharing: who should do what?

Disagreements about how much each country should do to combat climate change at the global level have been mirrored by similar arguments within the EU over how the burden of meeting its ambitious targets should be shared.

These arguments centre on whether the richest EU countries should do more than their poorer neighbours, because tough environmental targets could make it harder for poorer member states to catch up with the most prosperous. Put simply, the EU's poorer countries say they cannot afford to do as much.

The picture is complicated because some countries' economies are more dependent on energy from fossil fuels than others and some have already done much more than others to combat climate change. (This partly reflects differences in public attitudes towards environmental issues in different member states: opinion polls show that some are more concerned about climate change than others.)

The scale of the challenge countries face now will depend in part on past levels of investment in 'clean' technologies and whether they have already begun making gradual changes to the way their economies function (by, for example, setting tough rules for improving the energy efficiency of products, households and factories).

Depending on where they are, EU countries will also be affected in different ways by extreme weather patterns: southern Europe already appears to be experiencing much higher temperatures than in the past while continental Europe is increasingly being hit by severe flooding.

The arguments over what is known as 'burden-sharing' have been complicated by arguments over how the EU can achieve its ambitious targets for combating climate change in the midst of a global financial crisis and economic slowdown, and growing fears of a prolonged recession.

Some argue that climate change measures are costly to implement and will further dent economic activity, particularly in countries with big manufacturing sectors. They say the EU should either abandon its ambitious targets or delay taking the necessary measures until the economic situation improves.

They also warn of the risk of 'carbon leakage' if the EU introduces tougher measures than the rest of the world, arguing that this would encourage industries which use a lot of energy to consider moving to regions of the world where regulatory regimes are less tough and where it is less costly to pollute. This, they argue, would cost jobs in the EU and would not help to reduce overall global emissions (and could even lead to an increase).

However, others insist that action is needed now because the longer we wait, the more damage will be done by

climate change and the more expensive it will be to deal with its impact. They also argue that, far from damaging the EU's economies, developing the 'clean' technologies needed to reduce greenhouse gas emissions will boost their competitiveness.

As the EU already leads the world in producing many energy-efficient technologies, they say that convincing other countries to limit their emissions will be good for EU companies in this sector, which could benefit from a surge in exports, thereby creating more 'green' jobs. They also point out that households and companies would benefit from more energy-efficient products through lower energy bills.

Finally, many argue that the economic crisis could actually help fight climate change, with falling demand in many parts of the world leading to cuts in production in energy-intensive industries and the consumption of energy-intensive goods. This, they say, will help reduce greenhouse gas emissions and give the EU more room for manoeuvre to meet its targets (although others say this means that the EU does not need to set such ambitious targets now).

Here, again, the picture is complicated by the fact that, although the financial crisis and economic downturn are having an impact on all EU countries, some are suffering more than others.

The arguments over how to share the burden of combating climate change within the EU are mirrored by disagreements over who should foot the lion's share of the bill within each country - governments, industry or consumers – and therefore what mix of policy tools should be used.

Some argue that industry and electricity producers should bear the greatest cost because many electricity generation and manufacturing processes produce carbon dioxide. They could therefore make a significant difference by investing in producing greener goods and services in a more efficient way.

But others warn against imposing heavy additional burdens on EU business which could undermine its ability to compete with rival companies in international markets and cost jobs, especially in the current economic downturn.

Others also argue that industry should not be singled out and that solutions should be found by looking at emissions on a sector-by-sector basis.

Based on this approach, they say the buildings sector has the greatest potential to help reduce emissions through improvements to heating, insulation and air conditioning systems, with the European Commission estimating the energy-saving potential at 27-30%.

Many also see changes in the transport sector to reduce emissions from cars, lorries, boats and planes as a key

element of the fight against climate change, with the Commission estimating its energy-saving potential at 26%.

Consumers also have a role to play, as changes in their shopping and travel habits and energy use could make a real difference. They could, for example, reduce the amount of energy they consume by turning down their heating or switching from using private cars to public transport. They could also increase the demand for energy-efficient goods, which should make them cheaper in the long run.

But, again, there are disagreements over how much the public can and should be expected to do in the midst of a recession. Some highlight the impact of rising unemployment on household incomes, while others point to the savings which families could make on their energy bills by insulating their homes or buying more energy-efficient products.

This leads many to argue that governments should foot most of the bill, using taxpayers' money to pay for the measures needed to meet the targets.

But this is also contentious. Critics argue that those who pollute the most should pay the most and spending taxpayers' money on climate change measures means everyone contributes to the cost, whether they want to or not. Some also question whether governments are really best-placed to decide, for example, which 'green' technologies to invest in and say government support for some might stifle the development of other promising technologies.

The answer to this question has a significant impact on the answer to the next big question: what mixture of policy 'tools' should be used to help meet agreed targets?

Table 6. What do you wish it was done at the EU level?

Policy option	Arguments made for	Arguments made against
Within the EU, all member states should make an equal contribution to achieving the targets set	- Exempting some EU member states from tough targets would limit the overall impact of climate change measures - Allowing some EU countries to pollute more than others would result in more damage to the climate in the short term and make it more costly to deal with the impact in the long run - The opportunities to benefit from developing 'clean' technologies and exporting them worldwide would be increased because of higher demand for such products across the EU	- Less prosperous EU member states would find it harder to catch up with their wealthier neighbours - Countries whose economies are dominated by energy-intensive industries would be able to make the necessary changes to their economy more gradually, minimising the impact on their economic growth, if they were not required to do as much as others - In the short term, lower targets in some EU countries would help prevent 'carbon leakage' to other parts of the world
Within the EU, the capacity of different member states to help achieve the overall targets set should be taken into account, with some countries doing more than others.	- Less prosperous EU member states would find it easier to catch up with their wealthier neighbours - EU countries whose economies are dominated by energy-intensive industries would be able to make the necessary changes to their economy more gradually, minimising the impact on their economic growth - In the short term, lower targets in some EU countries would help prevent 'carbon leakage' to other parts of the world	- Exempting some EU countries from tough targets would limit the overall impact of climate change measures - Allowing some EU countries to pollute more than others would result in more damage to the climate in the short term and make it more costly to deal with the impact in the long run - The opportunities to benefit from developing 'clean' technologies and exporting them worldwide would be reduced because of lower demand for such products in some countries - In the long term, it could prevent the switch to a renewable technologies-based industry in the EU

How should agreed targets be met?

A range of policy tools are available to combat climate change: some are cheaper and easier to implement than others, some have a greater impact on some sectors of society than others, and some require more drastic changes in behaviour than others. Decisions on which tools to use have to be taken by weighing up the likely benefits against the likely costs.

Some focus on 'positive' incentives (rewarding those who take the steps necessary to reduce emissions), while others focus on discouraging 'polluting behaviour' by charging for it.

Positive financial incentives can take the form of government subsidies (for instance, government-sponsored discounts on 'hybrid' cars or energy-efficient light bulbs) to encourage people to buy them. This in turn can help to develop enough demand for such goods to enable companies to produce them more cheaply through 'economies of scale'. Measures to discourage polluters can include 'carbon taxes' on goods which emit carbon dioxide (e.g. fuel) or energy-intensive industrial processes.

EU governments generally use a mixture of approaches and measures, depending on the precise characteristics of their economies. But, in some cases, they are already bound by laws they have agreed at EU level to take certain actions (see above, in the section on what the EU has already done) and their room for manoeuvre is therefore limited.

One focus of current attention is energy efficiency - making the products people buy, the way they travel, and their homes and workplaces more energy-efficient, so that they can reduce their energy consumption without dramatic changes in their lifestyles (by, for example, driving cars that use less fuel or insulating their homes).

The big question here is who pays for these energy-efficiency improvements: governments via subsidies and funding for research and development into clean technologies etc; companies through an obligation to comply with tough EU-wide energy-efficiency standards; or consumers through laws forcing them to buy potentially more expensive energy-efficient products or pay for energy-efficiency improvements in their homes?

But many people argue that improving energy efficiency is unlikely to be enough, on its own, to meet the emission-reduction targets the EU has set itself.

Some suggest tougher action to reduce energy consumption will be needed. This could include 'rationing' - putting a limit on the consumption of specific energy sources or on how much of a certain product people can use before they have to pay significantly higher prices for it. This might mean, for example, setting a limit on how much petrol motorists can buy at 'normal' prices and charging them much higher

prices for purchases above that limit. This is equivalent to introducing energy-use quotas, but leaves it up to users to decide whether they want to exceed those quotas by paying more for using more.

One of the key policy tools used to fight climate change are so-called 'market-based' mechanisms. The EU's Emissions Trading Scheme (ETS), for instance, creates a market in which companies can buy and sell the right to emit carbon dioxide.

The ETS covers almost 12,000 installations in the EU (such as iron, steel and power production plants, and cement and paper factories) accounting for close to half of the EU's total emissions. These emissions are 'capped' and 'traded' across member states under a system of allowances. If some emitters want to exceed their allowances, they can buy 'emissions credits' from others, who can make money by selling allowances they do not need.

The aim is to encourage both to reduce their emissions by introducing energy-efficiency measures and by switching to renewables: those with relatively high emissions in order to save money by reducing the quantity of credits they have to buy and those with relatively low emissions in order to make money by reducing their emissions still further so that they can sell more credits.

One key question here is what should be done with the money raised by the scheme when credits are sold through auctioning. Some argue that it is up to governments to decide how they want to spend it, some say the money should go back into industry in some form, while others insist it must be used to help pay for the development of new, 'clean' technologies and to help developing countries cope with the impact of climate change.

The concept of 'carbon pricing' (placing an economic value on greenhouse gas emissions resulting from human activity to create an incentive to reduce emissions) is fundamental to the Emissions Trading Scheme. But there are disagreements over whether the price of allowances should be set by the market (i.e. determined by supply and demand) or by policy-makers.

Table 7. What policies should the EU use to meet agreed targets?

Policy option	Arguments made for	Arguments made against
Reduce energy consumption by investing in energy efficiency	• This would result in rapid gains for consumers and industry (through the availability of more energy-efficient products and cheaper energy bills), which would offset the cost of making the necessary investments • It would not require significant changes in people's lifestyles • The EU could develop a competitive advantage in energy-efficient technologies • Developing energy-efficient products and setting tougher energy-efficiency standards for homes and workplaces would create jobs and boost economic growth	• Complying with tougher energy-efficiency standards would put too heavy and costly a burden on EU industry • Some companies or industries might decide to relocate to countries outside the EU where energy-efficiency standards are lower, destroying jobs in the EU • Complying with tougher energy-efficiency standards would be too costly for consumers • In the current economic downturn, governments, industry and consumers cannot afford to pay for the energy-efficiency improvements needed to make a real difference
Invest in technologies aimed at 'capturing and storing' greenhouse gas emissions (mainly caused by coal)	• In the short term, this would bring significant benefits for energy-intensive industries by reducing the impact of their activities without having to actually reduce their emissions • It could help prevent energy-intensive industries relocating to countries where climate change regulations are less strict	• In the long term, the storage of carbon dioxide emissions may prove dangerous for the environment because of the risk of leakage • The required technology is costly • Who would pay for it? Some argue that income generated by initiatives such as the Emissions Trading Scheme should be spent on developing renewable energy instead of simply storing emissions • It could take a long time to implement the required technology
Reduce greenhouse gas emissions by investing in nuclear energy	• It would offer a medium-term solution because producing more nuclear power could help to meet Europe's rising energy needs • Nuclear is a 'clean' source of energy, as it produces no carbon dioxide emissions (although some emissions are generated in building nuclear power plants, mining and processing uranium etc). • It would reduce the EU's dependence on fossil fuels imported from outside the EU • Investing in nuclear energy could create expertise in this area, which the EU could export • Nuclear energy can provide a stable source of energy at affordable prices for consumers and businesses	• Public opinion in many EU countries is strongly opposed to nuclear energy, amid concerns about its security, health and environmental impact • There is no agreement on how to share the burden of, for example, dealing with nuclear waste across the EU • Nuclear energy will eventually become a scarce resource because of increased demand for the raw materials needed to produce it • It would take a long time to build the necessary nuclear power plants etc to increase production to the levels required to meet rising demand • Nuclear energy is not a cheap option, with potentially high bills for decommissioning old nuclear power plants, and dealing with nuclear waste and any accidental release of radiation

Policy option	Arguments made for	Arguments made against
Reduce emissions by investing in renewable energy (wind, solar, biofuels)	- Emissions could be reduced without requiring cuts in energy consumption because renewables are a 'clean' source of energy - Renewable energy can be produced 'at home' and reduce the EU's dependence on imported energy - The cost of renewable energy will fall as demand increases - Renewable energy is safer than nuclear power - Developing renewable energy sources creates jobs and boosts economic growth, and could give the EU a competitive edge in developing and exporting the necessary technology	- Renewable energy cannot be produced in sufficient quantities to meet the EU's rising energy needs on its own - The technology is not advanced enough, and there are problems with storage, grids etc. - The cost of producing renewable energy is too high to rely on it too heavily - Nuclear energy can be produced as safely and more cheaply than renewables.
Reduce energy consumption by reducing the quantity of goods and services we make and use	- This would result in immediate financial savings for consumers - It does not require any additional investment in energy-efficient products etc.	- It would require a significant change in people's lifestyles, and could spark a backlash against taking action to combat climate change - It would dampen economic growth and destroy jobs
Using incentives such as Emissions Trading Scheme, tax and other financial incentives	- This could help to develop a 'critical mass' of demand for energy-efficient products and technologies, and new sources of energy - Rewarding people for 'good' behaviour is a powerful tool to change consumption patterns - Positive measures are more likely to maintain public support for combating climate change than negative ones such as higher prices for 'excessive' consumption	- Governments should not invest in certain technologies, as industry is best suited to decide how best to meet its needs - Taxpayers will have to foot the bill for funding certain incentives, whether they want to or not - It would be better to focus on 'punishing' industry if it fails to act to reduce emissions, as this is a more powerful incentive
Making the polluter pay	This ensures that the price of a product or service reflects the impact it has on the climate, and that those who cause environmental damage pay for it	Parts of industry might decide to relocate to other parts of the world, increasing the risk of 'carbon leakage'

The energy 'mix'

As well as deciding how best to encourage the changes in 'behaviour' needed to reduce emissions, governments also have to decide on how best to meet their country's energy needs.

According to figures from the European Commission, 80% of the energy the EU consumes comes from fossil fuels – oil (37%), natural gas (24%) and coal (18%) – with nuclear accounting for over 14% and renewables over 6%.

The EU's declared ambition to transform itself into a low-carbon economy implies a move away from fossil fuels and towards renewable and/or nuclear energy. However, the extent to which this is possible and over what time frame will depend in part on how dependent countries are now on carbon-intensive industries, how developed their renewable and nuclear energy sectors are, and public attitudes towards nuclear energy.

Fossil fuels

EU member states' economies are currently heavily reliant on fossil fuels, and the burning of fossil fuels accounts for about 90% of greenhouse gas emissions. The EU also depends heavily on imports of these fuels to meet its needs: 60% of its gas, 90% of its oil and 50% of its coal.

Both factors are driving moves within the EU to develop alternative sources of energy as well as new technologies to reduce the level of pollutants emitted into the atmosphere by fossil fuels, such as 'carbon capture and storage' (CCS). But some argue that such technologies are expensive and that their environmental benefit is unclear, given the risk that carbon stored underground could leak back into the atmosphere.

While fossil fuel resources are dwindling, there is no immediate shortage and they are currently relatively cheap to produce compared with other sources of energy. But with global energy consumption expected to continue rising in the future, the price of fossil fuels is expected to increase in the long term as resources become scarcer.

Renewable energy

One alternative to fossil fuels is renewable energy, a 'clean' source of energy because it is generated by natural sources such as the sun, wind and water.

The EU is committed to increasing renewable energy's share of total energy use to 20% by 2020. But it is up to individual EU member states to decide exactly how to do this and which sources of renewable energy to use. Some have already invested heavily in developing renewable energies, while others have not.

Those who argue for a much greater focus on renewable energy say that it cannot only contribute to cutting greenhouse gas emissions, but can also help to reduce the EU's dependence on imported energy.

Some forms of renewable energy are currently relatively expensive to produce, but anticipated increases in fossil fuel prices would reduce the relative cost, and greater demand for renewable energy should make them cheaper in the long run as mass production reduces the 'cost per unit'. They also argue that the technology required to maximise their potential has been developing rapidly in recent years, and will continue to improve.

But others maintain that renewable energy is not yet available in sufficient quantities to meet Europe's energy needs, cannot be stored easily and the technology is not yet available to improve storage capacity. Improvements are also needed in the system for distributing some types of renewable energy.

Some also point out that certain types of renewable energy are 'cleaner' than others, given, for example, variations in the emissions generated by manufacturing and transporting the equipment needed to produce them, and their impact on animal and plant life.

Different types of renewable energy have advantages and disadvantages:

Hydro (water) power consumption increased steadily between 1990 and 2005, accounting for 1.5% of total energy use in the EU by 2005. But production has fallen (relative to other types of renewable energy) in recent years and there are concerns about its impact on plant and animal life and a lack of sites to build on, not least because of EU legislation which restricts the building of dams on environmental grounds. Building large-scale hydro plants has therefore become more difficult, with some arguing for a greater focus on building small hydro power stations.

Biomass and waste (converting plant materials, animal or municipal waste into fuel) is currently the largest source of renewable energy in the EU and accounted for 4.2% of its total energy use in 2005. It is mostly used for heating, but can also be used to make electricity. It can be produced domestically and is relatively easy to store, but burning biomass produces greenhouse gas emissions and intense harvesting can threaten plant and animal life. However, turning waste into gas that can be burnt in power plants could help reduce emissions.

Biofuels (fuel derived from plants) currently account for about 1% of energy consumption in the EU's transport sector. The EU's goal is to ensure 10% of transport fuels come from renewables, including biofuels, by 2020. Biofuels are particularly controversial because of concerns that land may be taken out of food production to grow the necessary crops,

increasing the risk of food shortages in developing countries. There are also concerns about their impact on the world's forests.

Wind power currently only accounts for 0.3% of energy consumption in the EU, but has been growing at an annual rate of about 30% over the last decade. The EU is a leading global consumer and producer of wind energy, and a world leader in wind energy generation and technologies. This gives this sector significant potential for growth and job creation. Most wind power is currently produced 'on-shore', prompting complaints about its visual impact, especially in areas where tourism is important to the local economy. Relatively little wind power is produced 'off-shore' (out at sea), but this is likely to increase as the technology improves.

Solar energy currently accounts for only 0.04% of EU energy consumption from renewables but has been steadily increasing. It has significant potential for growth, but it remains more costly to produce than other types of renewable energy. Some EU member states have introduced laws on the use of solar panels in new buildings, with the aim of increasing demand, which should reduce the cost in the long run.

Nuclear energy

Some argue that producing more nuclear energy is part of the answer to the climate change challenge, claiming that nuclear power plants generate far less carbon dioxide emissions overall than traditional power plants. They maintain that increasing nuclear energy production (as well as promoting renewables) is vital to meet Europe's energy needs while at the same time reducing emissions.

A number of countries (including Finland and the United Kingdom) have decided to rely more on nuclear energy for both economic and environmental reasons. They argue that nuclear energy can be produced safely and can contribute to reducing emissions, and is cheaper than alternative sources. Some also see it as a way of reducing their dependence on imported energy.

However, others argue that increasing nuclear's share of the overall energy mix would require significant investment in building new and efficient power plants, making them safe and providing the facilities to deal with nuclear waste – and it would take time to build the necessary capacity. Critics also raise serious security, health and environmental concerns, fuelled by nuclear accidents such as the Tchernobyl disaster in the Ukraine in 1986, and the key issue of what to do with nuclear waste. They also point out that while nuclear energy does not generate carbon dioxide emissions, building nuclear power plants, mining the uranium needed to produce nuclear energy etc. does.

Finally, some argue that the uranium required to produce nuclear energy will become scarcer as world demand grows and point out that the EU imports almost all of its uranium ore

from countries such as Australia. But others say technological advances will reduce the quantities of uranium needed to produce nuclear energy.

Acknowledgements

These briefing materials have been compiled by the European Policy Centre, a leading Brussels-based think tank on European Union affairs.

They were reviewed by representatives of all the European Parliament's political groups (listed below) and by a range of organisations working on this issue (also listed below).

The text was then revised in light of their comments with the aim of ensuring that the information provided is balanced and that all the arguments made in support of or against different policy approaches are given.

Political groups:

Group of the European People's Party and European Democrats (PPE-DE)
Socialist Group in the European Parliament (PSE)
Group of the Alliance of Liberals and Democrats for Europe (ALDE)
Group of the Greens/European Free Alliance (VERTS/ALE)
Confederal Group of the European United Left/Nordic Green Left (GUE/NGL)
Union for a Europe of Nations Group (UEN)
Independence/Democracy Group (ID)

Organisations - Immigration document:

Business Europe
Eurociett (European Confederation of Private Employment Agencies)
Caritas Europa
European Trade Union Confederation (ETUC)
Migration Policy Group (MPG)
Migration Policy Institute (MPI)

Organisations - Climate Change document:

Business Europe
BP Europe
WWF
European Climate Foundation
Clingendael

IV. European Parties' Policy aims¹

The passages quoted in this document were taken from parties' official electoral manifestos, unless otherwise stated. All the documents, statements, and releases quoted were publicly available in the official websites of the parties. The material has been retrieved and all the websites have been accessed between March the 2nd and March the 5th 2009. This section has been compiled by Stefano Braghiroli (University of Siena) and Alfredo Zucchi, (University of Siena), in collaboration with Hermann Schmitt (University of Mannheim).

IMMIGRATION

EUROPEAN PEOPLE'S PARTY (EPP)

The EPP proposes to "fight illegal migration, at the EU level, starting from the needs, the capacity and the priorities set up by each Member States". Accordingly, the EU has to: establish a fair but firm illegal migrants' return policy" (in line with the Return Directive which the EPP "fully supports"); "coordinate Member States' regularization systems, namely through the Blue Card System"; and "protect the coasts of the EU via the creation of a European Coast Guard". On the job market, the EPP proposes to "implement the European preference to tackle skill shortages in the Member States and encourage intra EU migration". [Relevance in the Manifesto: SOMEWHAT IMPORTANT]

SOURCE: EPP's Manifesto – The EPP, Your majority in Europe. Available at: http://dl1.streaming.telenetmedia.be/epp/manifesto/draft_EPP_European_Elections_2009_Manifesto.pdf

EUROPEAN DEMOCRATS² (British Conservative Party and Czech Civic Democratic Party)

When it comes to legal migration-flows, British Conservatives maintain that "Member States must retain the freedom to set their own parameters for whom they wish to enter and work in their countries". Accordingly, Philip Bradbourn MEP, Conservative Spokesman on Justice and Home Affairs, declares that even "legal migrants from other EU Member States are already causing major problems for social services, housing and other agencies". In this perspective, British conservatives also oppose the Blue Card scheme for skilled immigrants given the lack of "the controls necessary to ensure that those who employ illegal migrants are tackled and those illegal migrants who are caught are sent back to their country of origin". In this respect, Philip Bradbourn MEP

adds that "what we should be addressing is the wave of illegal migration into the EU before we tackle skills shortages".

PARTY OF EUROPEAN SOCIALISTS (PES)

PES identifies "to establish common standards for legal migration into the European Union" and "to establish a European Charter for the Integration of Migrants, based on equal rights and responsibilities and mutual respect". In order to coordinate "European efforts to combat illegal migration" PES proposes "to strengthen cooperation with third countries" and to introduce "a common External Border Control Policy". These actions should be accompanied by "the further development of the Common European Asylum System". [Relevance in the Manifesto: SOMEWHAT IMPORTANT]

SOURCE: PES Manifesto - People First: A New Direction for Europe. Available at http://www.pes.org/downloads/PES-Manifest_EN.pdf

¹ The European parties represent political party organizations operating transnationally in Europe which consist of affiliated national parties. Frequently the European parliamentary groups are the formal representation of a European political party in the Parliament, in other cases it represents a political coalition of a number of European parties and/or national parties and independent politicians. In terms of membership, the level of match between the two entities is therefore imperfect. For those parties which approved an electoral manifesto, the saliency of a given policy area in the text has been calculated as the ratio between number of words devoted to that specific policy area and total number of words in the manifesto. The final ranking has been defined as follows: 0-5%: Unimportant, 6-10%: Somewhat important, 11-15%: Quite important, 16-20%: Important, 21-25%: Very important.

² The British Conservative Party and the Czech Civic Democratic Party (ODS) are not affiliated to any European party federation. However they closely cooperate on a bilateral basis within the framework of the European Democrats (ED). At EP level the European Democrats are allied partners of the European People's Party (EPP) and the two form a single parliamentary group (EPP-ED).

EUROPEAN LIBERAL-DEMOCRATS AND REFORMERS (ELDR)

ELDR supports “the introduction of an EU ‘blue card’ system, administered by each member state, to ensure measured economic migration for the benefit of EU citizens”. [Relevance in the Manifesto: UNIMPORTANT]

SOURCE: ELDR Manifesto - European Liberals' top 15 for EP elections, October 2008. Available at <http://www.eldr.org/pdf/manifeste/eldr-manifeste-electoral-en.pdf>

EUROPEAN GREEN PARTY (EGP)

EGP opposes “the siege mentality of ‘Fortress Europe’” and sees “immigration as an opportunity” and recommend “positive-minded policies that will allow people [...] to come here legally and efficiently [...] with equal rights and equal pay, as well as the opportunity of European citizenship”. According to the Greens “people who seek asylum in Europe deserve to be treated better”. The Greens therefore oppose “repressive laws on returning unauthorised migrants” and “inhumane or xenophobic legislation”. The European Greens propose more efficient cooperation among the EU countries to “to fight the despicable trafficking of men, women and children”. [Relevance in the Manifesto: SOMEWHAT IMPORTANT]

SOURCE: EGP Manifesto - A Green New Deal for Europe. Available at <http://europeangreens.eu/menu/egp-manifesto/>

EUROPEAN LEFT

The European Left “demands a reinforcement of migrants’ right to work wherever they live in the EU – a migration law should focus on migrants’ interests and not on the interests of companies looking for cheap labour, which forces millions of migrants to work in the black market”. It therefore “rejects any EU laws imposing expulsion, namely the ‘Return Directive’”. It holds, moreover, that “the EU should close detention prisons”. For the sake of a “cosmopolitan EU, the European Left rejects the already existing FRONTEX system of border controlling and demand the rejection of all plans on the implementation of the ‘Pact of Migration and Asylum’”. [Relevance in the Manifesto: UNIMPORTANT]

SOURCE: European Left Manifesto – Together for change in Europe. Available at: www.european-left.org/english/news/electoral_platform

Independence/Democracy

The IND/DEM strongly opposes any further involvement of the EU in dealing with immigration. According to Nigel Farage MEP, co-chair of the IND/DEM group in the European Parliament, “The erosion of the nation state’s key-power to apply its own immigration-policy is precisely where our problems come from. That power should be restored immediately”. When it comes to legal immigration the IND/DEM maintains that referring “to European nations, [...] nations always benefit from the right degree of immigration and that this degree might be higher than otherwise, given the low birth-rate in Europe”

SOURCE: Interview with Nigel Farage and Johannes Blokland, EUWatch N. 4, Dec. 2006/Jan. 2007. Available at http://indemgroup.org/fileadmin/user_upload/groupdocs/euwatch/euwatch04-dec-jan.pdf

CLIMATE CHANGE

EUROPEAN PEOPLE’S PARTY (EPP)

The EPP holds that the EU has to “maintain international leadership on climate change and promote international dialogue in order to reach a decision on a post-2012 agreement by the end of 2009 in Copenhagen.” Internally, the EU should: “progress with the implementation of the European Trading Scheme³ – involving as many industrial sectors as possible, but establishing workable thresholds in order to avoid carbon leakage”; “establish sector specific targets for Member States to give renewable energies a share of at least 20% of the energy mix in the EU by 2020;” promoting nuclear energy, “as it can contribute to the commitment to reduce greenhouse gases”– provided that “the power stations meet the highest possible standards concerning safety”. [Relevance in the Manifesto: VERY IMPORTANT]

SOURCE: EPP’s Manifesto – The EPP, Your majority in Europe. Available at: http://dl1.streaming.telenetmedia.be/epp/manifesto/draft_EPP_European_Elections_2009_Manifesto.pdf

³ This topic is touched upon in the briefing Material in the section “How should agreed targets be met?”

EUROPEAN DEMOCRATS (British Conservative Party and Czech Civic Democratic Party)

Czech Conservatives consider global warming, and namely, “the excess production of carbon dioxide to be a serious problem”. However, “the European Parliament is setting itself some very ambitious goals”, that, according to the ODS, “are often unattainable”. According to Miroslav Ouzký MEP, Chairman of Committee on the Environment, Public Health and Food Safety, the problem stems from an evident paradox: “If we set the target share of renewable sources of energy too high, then the member countries will not be able to attain that goal. If we do not include nuclear energy among renewable sources, then countries with favourable geographical conditions will be given an obvious advantage”. In other words, “Despite all of the negatives, nuclear energy is currently the only real alternative to thermal power plants”.

SOURCE: Can Europe stop climate change? Available at <http://www.europeanreform.eu/can-europe-stop-climate-change/>

PARTY OF EUROPEAN SOCIALISTS (PES)

The European Socialists support the achievement of “a new global climate agreement for the post-2012 period” aimed at granting “a 30% global target for emission reductions by 2020”. PES proposes to establish “a global energy and development forum” and “to increase EU support for developing countries to fight [...] climate change”. PES maintains that “biofuels can help [...] but this should not come at the expense of food production”. According to the socialists “it is for each Member State to decide on whether to use nuclear power. However, [...] the monitoring of existing and new nuclear power plants should be coordinated at the European level”. [Relevance in the Manifesto: SOMEWHAT IMPORTANT]

SOURCE: PES Manifesto - People First: A New Direction for Europe. Available at http://www.pes.org/downloads/PES-Manifest_EN.pdf

EUROPEAN LIBERAL-DEMOCRATS AND REFORMERS (ELDR)

In Liberals' view “Europe must become an efficient low carbon economy leading the world in conservation, renewable energy and creative market instruments”. At the same time, ELDR proposes “reduced administrative burdens” for European business and “incentives to stimulate investment in techniques to enhance a strong low carbon economy”. ELDR wants “to integrate climate and energy policy based on sustainable economic growth, and to protect the natural environment”. ELDR promotes “an ambitious reform of the Common Agricultural Policy [...] to direct funding for research

in renewable energies, including sustainable new generation bio-fuels”. [Relevance in the Manifesto: QUITE IMPORTANT]

SOURCE: ELDR Manifesto - European Liberals' top 15 for EP elections, October 2008. Available at <http://www.eldr.org/pdf/manifeste/eldr-manifeste-electoral-en.pdf>

EUROPEAN GREEN PARTY (EGP)

The Greens want Europe to play a leading role “in reducing energy consumption 20% by 2020” and propose the EU “to commit to emissions reductions of 40% at the very least by 2025 and of 90% by 2050”. The EGP endorses “a combination of ambitious and binding targets, of incentives and of public investments into green technologies and services can help create millions of green jobs in Europe [...] at a time of economic slowdown”. Accordingly “renewables must be put at the centre of European energy policy for the 21st Century” through the creation of “a European Renewables Community (ERENE)”, while “nuclear energy cannot be part of the solution to climate change”. [Relevance in the Manifesto: VERY IMPORTANT]

SOURCE: EGP Manifesto - A Green New Deal for Europe. Available at <http://europeangreens.eu/menu/egp-manifesto/>

EUROPEAN LEFT (EL)

The European Left, “holding that climate and social questions are linked, supports the development of a new International treaty according to the 4th report of the Intergovernmental panel on Climate Change and of sticking to the EU action plan 2007-2009. Moreover, it oppose “the reduction of the Kyoto Protocol to a market system of quota emissions: a new paradigm based on cooperation instead of competition is needed, starting with the technology transfer to developing countries, the funding of clean technologies and the policies of adjustment to climate change”. [Relevance in the Manifesto: SOMEWHAT IMPORTANT]

SOURCE: European Left Manifesto - Together for change in Europe: Available at: www.european-left.org/english/news/electoral_platform

INDEPENDENCE/DEMOCRACY

According to the IND/DEM the relevance of men-made climate change is still debatable and lacks scientific evidences. In the words of Graham Booth MEP (UK Independence Party) "in view of the considerable doubt being expressed by many thousands of eminent scientists (Manhattan Declaration, Oregon Petition etc) about the whole theory of Anthropogenic Global Warming, it is astonishing that more money will be spent preparing for an unproven scientific project than will be spent on resolving the known problems related to (lack of) growth and unemployment".

SOURCE: Climate targets cost every family nearly £100 pa. [News Release], July 2008. Available at [http://indemgroup.eu/32/browse/4/news/514/?tx_ttnews\[backPid\]=39&cHash=5bf171d6bb](http://indemgroup.eu/32/browse/4/news/514/?tx_ttnews[backPid]=39&cHash=5bf171d6bb)



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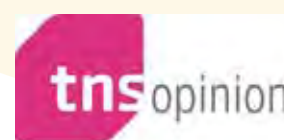
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